

to San Jose BMW only. The entirety of this action, including the non-arbitrable claims against Hodgson are STAYED pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3).

IV. CONCLUSION

Based on the foregoing, the motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The Court will prepare the formal Order.

Calendar Line # 8

Case Name David Dixon, Jr., Ind. And as SII to the Estate of David Dixon, Sr. et al vs Jason Murray et al.

Case No. 25CV482719

Petition to Compel Arbitration

I. BACKGROUND

Decedent David Dixon Sr. (“Decedent”), was a resident at Defendant Sunnyvale Gardens Post Acute¹ from December 19, 2017 to October 29, 2025. (Complaint at ¶ 24). Decedent had a history of constipation and stool impaction that required caregiver assistance for daily living, including assistance with hygiene, turning, and repositioning. (*Id.* at ¶ 32). Defendants allegedly failed to implement preventative interventions for Decedent, including notifying responsible parties of changes to his condition. (*Ibid.*). Decedent suffered from a severe fecal impaction and urinary tract infection resulting in septic shock, which ultimately led to his death. (*Ibid.*). Plaintiff David Dixon Jr. (“Plaintiff”), individually and as the successor-in-interest to the estate of Decedent, brings this action for (1) elder abuse/neglect; (2) negligence; (3) violation of patient’s rights; (4) wrongful death; and (5) survivorship against Defendant.

Defendants move to compel arbitration of Plaintiff’s claims pursuant to an Arbitration Agreement (the “Agreement”) purportedly signed by Decedent. Having considered the Agreement and the circumstances of its execution, the court will deny the motion to compel arbitration.

II. LEGAL STANDARD

A. OBJECTIONS TO EVIDENCE

Defendants object to the Declaration of David Dixon. Objection Nos. 1-3 & 5 are OVERULED. Mr. Dixon indicates that he has personal knowledge of the facts set forth in his declaration. He states, “[m]y father and I were very close, and I would visit him at least every week and talk to him by phone 2-3 times per week.” (Declaration of David Dixon [“Dixon Decl.”] at ¶ 3). His declaration is further based on his experience and knowledge of his father’s signature. (*Id.* at ¶ 4). Mr. Dixon offers examples of his father’s signature for comparison. Objection No. 4 is SUSTAINED in so far as Mr. Dixon speculates about why Defendants had his father sign the Agreement.

Defendant further objects to the Declaration of Kirsten Fish. The Court OVERRULES these objections. Ms. Fish summarizes and quotes the relevant portions of the Exhibits submitted by Plaintiff. Ms. Fish claims to have personal knowledge of these facts based on her review of the record. Ms. Fish’s summary of the Exhibits can be taken to prove their existence as opposed to the truth of the matters asserted therein. Defendants do not object to

¹ Defendants include Sunnyvale Community Healthcare, LLC dba Sunnyvale Gardens Post Acute; Providence Group NH, LLC; PACS Holdings, LLC; PACS Group, Inc.; Providence Group, Inc.; Providence Administrative Consulting Services, Inc.; Jason Murray; Mark Darrell Hancock; and Robert Pierce (collectively “Defendants”).

any of the Exhibits submitted alongside Ms. Fish’s declaration. The Court does not find the description of these Exhibits improper.

B. FEDERAL ARBITRATION ACT (“FAA”)

The Federal Arbitration Act (“FAA”) applies. The Agreement provides that it is to be “governed by the Federal Arbitration Act (9 U.S.C. §§ 1-6) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel arbitration.” (Amended Declaration of Rayleen Lopez [“Lopez Decl.”], Exh. B at ¶ 7.2). The Agreement further provides, “[a]s this Agreement relates to the Resident’s admission to the Facility, and the Facility, among other things, participates in Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors, the parties agree that the underlying admission to the Facility involves interstate commerce.” (*Id.*, Exh. B at ¶ 7.1).

The Federal Arbitration Act’s (“FAA”) term “involving commerce” is interpreted broadly. The basic coverage provision of the FAA “makes the law applicable to contracts evidencing a transaction ‘involving commerce’ (9 U.S.C. § 2), which language reflects that Congress intended the law’s coverage to extend to the full reach of its commerce clause power.” (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted]). “Congress Commerce Clause power ‘may be exercised in individual cases without showing any specific effect upon interstate commerce’ if in the aggregate the economic activity in question would represent ‘a general practice . . . subject to federal control.’” (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56-57 [quoting *Mandeville Island Farms, Inc. v. American Crystal Sugar Co.* (1948) 334 U.S. 219, 236]).

As noted above, Defendants receive funding from Medicare and Medi-Cal. Defendant also “utilized out of state vendors to provide care to its residents. Defendants also provide services to out of state residents and used the U.S. mail, telephone systems and internet connections to conduct business and provide services to its residents.” (Lopez Decl. at ¶ 11). These activities meet the broad definition for interstate commerce.

The Agreement notably excludes from application California Code of Civil Procedure section 1281.2 (c) “as the parties mutually desire to have any and all disputes submitted to binding arbitration.” (Lopez Decl., Exh. B at ¶ 7.3). Thus, only the FAA applies. Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

III. ANALYSIS

At issue is whether there is a valid agreement to arbitrate between the parties. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Defendants have attached a copy of the Arbitration Agreement bearing the Decedent’s initials. While Defendants have met their initial burden, Plaintiff challenges the authenticity of the signature.

“Where, as here, the respondent challenges the validity of the signature, however, the petitioner must ‘establish by a preponderance of the evidence that the signature was authentic.’ [Citation.] In such proceedings, ‘the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received

at the court's discretion, to reach a final determination.” (*Bannister v. Marinidence Oppo, LLC* (2021) 64 Cal.App.5th 541, 544 (*Bannister*) [quoting and citing *Engalla v. Permanente Medical Group, Inc.* (1977) 15 Cal.4th 951, 972]).

In the Amended Declaration of Rayleen Lopez, Ms. Lopez states that she met with Decedent on March 7, 2025 to go over his admissions documents. (Lopez Decl. at ¶ 4). Ms. Lopez claims she assisted Decedent with the Arbitration Agreement by reading the entire document to him, “pausing after each section to make sure that he had no questions about the Arbitration Agreement.” (*Id.* at ¶¶ 5, 6). According to Plaintiff's production of the “OneSpan Sign Electronic Evidence Summary” produced by Defendants, the Decedent's signature was placed within three seconds of viewing the document. (Declaration of Kirsten Fish [“Fish Decl.”], Exh. 6). This casts doubt as to whether Ms. Lopez in fact explained the Agreement to Decedent. However, “ [n]o law requires that parties dealing at arm's length have a duty to explain to each other the terms of the written contract” (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1674). Nevertheless, Plaintiff's declaration successfully challenges the authenticity of Decedent's signature.

Plaintiff maintains that due to paralysis, Decedent had not signed anything himself for the last five years of his life. (Dixon Decl. at ¶ 3). “His left hand was completely paralyzed and his right hand shook violently, making him incapable of signing documents. The shaking of his right hand was so bad, he even needed help getting food to his mouth during meals. He stopped writing about 7 years before his death and stopped using a laptop about 5 years before his death.” (*Ibid.*). Plaintiff also provides a comparison of his father's signature to the initials printed onto the Arbitration Agreement. (Dixon Decl. at ¶ 4, Exh. A). Even if the signatures are dated, Plaintiff maintains he never saw his father sign anything with just his initials, his hand would have been shaky which the initials do not show, and his letter “Ds” are always slanted to the right. (*Ibid.*). “When the dispute centers on the authenticity of signatures, [t]he opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by preponderance of the evidence, the authenticity of the signature.” (*West v. Solar Mosaic LLC* (2024) 105 Cal.App.5th 985, 992 [quoting *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755] [affirming the trial court's denial of the petition to compel arbitration because the plaintiff was “in his 90's, suffered from dementia, did not use a computer, mobile phone or e-mail, and was unable to answer simple questions . . . without assistance and significant delay]).

Plaintiff also states that his father would not have signed the Agreement on his own because he relied on Plaintiff as his main decision maker to sign any necessary documents for him. (Dixon Decl. at ¶ 5). “Whenever anyone would approach him from the Facility management or the billing office, he would tell them to talk to me and he would immediately let me know what was happening. No one other than me handled medical or legal decisions for my father while he was in the Facility.” (*Ibid.*). Plaintiff's exhibits show that Defendant frequently consulted Plaintiff on matters concerning the Decedent, including a consent to give vaccines, a wound consult, and a hospital transfer. (Fish Decl., Exh. 4). Even if Decedent did not have a Power of Attorney, these facts show that he still relied on Plaintiff to make important decisions. Plaintiff notes the Agreement was signed one day after Plaintiff had an appointment with the Orthopedic Trauma unit. (Dixon Decl. at ¶ 6). He was alone that day without any family members present. (*Id.* at ¶ 7). Plaintiff maintains he would not have signed or been instructed to sign the Arbitration Agreement on Decedent's behalf. (*Id.* at ¶ 8).

Plaintiff's evidence about his father's paralysis, the character of his signature, and reliance on Plaintiff as the main decision maker casts doubt as to whether the initials placed on the Arbitration Agreement were in fact the act of Decedent. The evidence strongly suggests Decedent lacked the technical facility to place his initials on the Agreement. Plaintiff has submitted evidence that creates a factual dispute as to whether Decedent actually signed the Agreement. Apart from the testimony of Ms. Lopez, which is challenged by Plaintiff's evidence, Defendants have not met their burden by a preponderance of the evidence. Although based on different facts, much like *Bannister, supra*, 64 Cal.App.5th at p. 545, “[t]his is a classic example of a trial court drawing a conclusion from conflicting evidence.” With the authenticity of Decedent's signature drawn into question, the Court cannot conclude there is a valid agreement to

arbitrate. For these reasons, the motion to compel arbitration is DENIED. The Court need not reach the parties' remaining arguments.

IV. CONCLUSION

Based on the foregoing, the motion to compel arbitration is DENIED.

The Court will prepare the formal Order.

Calendar Line # 9

Case Name Baoxin Ling vs Jieqian Xing et al

Case No. 26CV489684

Motion to Strike

Before the court is plaintiff Baoxin Ling's motion to strike against first amended answer. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Baoxin Ling aka Ivy Ling ("Ling") is a professional baker and dessert chef. (Complaint, ¶7). Defendant Jieqian Xing aka Tiffany Xing ("Xing") approached plaintiff Ling with a proposal of jointly opening and operating a bakery business. (Complaint, ¶8). Plaintiff Ling agreed to participate in the venture by contributing labor, skill, time, and goodwill to the business and further agreed to make a capital contribution and to take the position of minority member and manager of the company that would operate the bakery store known as Topi Cake. (Complaint, ¶11). On August 12, 2024, defendant Xing executed and filed articles of organization for defendant Miro Holdings, LLC ("Miro") dba Topi Cake. (Complaint, ¶12).

A dispute ensued over the management and ownership of defendant Miro as well as plaintiff Ling's employment compensation and working conditions. On March 18, 2026, plaintiff Ling commenced this action against defendants Xing and Miro by filing a complaint asserting the following causes of action:

- (1) Retaliation
- (2) Wrongful Constructive Termination in Violation of Public Policy
- (3) Failure to Pay Minimum Wages
- (4) Failure to Pay Overtime Wages
- (5) Failure to Provide Meal Periods
- (6) Failure to Authorize and Permit Rest Periods
- (7) Failure to Provide Accurate Itemized Wage Statements
- (8) Waiting Time Penalties for Failure to Pay Final Wages
- (9) Failure to Maintain Payroll Records
- (10) Misclassification of Employees as Independent Contractors
- (11) Unfair Business Practices
- (12) Breach of Fiduciary Duty
- (13) Conversion
- (14) Accounting
- (15) Declaratory Relief

On May 4, 2026, defendants Miro and Xing each separately filed an answer to plaintiff Ling's complaint.

On May 28, 2026, defendant Xing filed a first amended answer to plaintiff Ling's complaint.